Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report
Residential Care

Licensee: Albertina Kerr **–** Subacute
Executive Director: Allison Stark
Program Director(s): Derrick Perry
Date of Unannounced: 8.21.2024
Licensing Coordinator: Jorge Pelinski & Harry Gilmore
Other Regulatory or Accrediting Agencies: OHA

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings **License Renewal Site Visit 01/24/2024**	**Repeat Findings Further Action Needed**	**Comments**
Supplemental Information Provided by CCA All required policies and procedures as identified in the "Umbrella Rules" 419-400-0150Licensing Umbrella Rules: Discipline, Behavior Management & Training, and Suicide Prevention (Excluding Adoption Agencies) (4) Suicide Prevention. The policy must include the following: (c) Emergency protocol and contacts; (d) Training requirements for staff, including…..suicide risk assessment tool training;	**Yes☐ No✓**	The agency submitted in their Plan of Correction policy revisions that meet OAR requirements. There is nothing further required regarding this finding.

• The policy wasn't sufficient with details regarding emergency protocol and contacts. Licensing spoke with management during the review about what is needed to bring the policy into compliance and sent an email with this information after the review. • The policy did not include requirements for staff regarding suicide risk assessment tool training.		
Physical Plant 419-470-0020(2)(a) &(c) Buildings are smoke free, clean and in good repair • The key switch for the gate/door that leads to the outside gated recreational area needs to be rewired due to a short in the wiring. Program Leadership stated an outside contractor will be coming to fix the lock. **Corrective Action**: Agency will fix the gate lock. Agency will submit a copy of the repair receipt as part of their corrective action plan.	**Yes☐ No✓**	Pictures submitted to licensing coordinator verifying repairs have been completed. No further action needed regarding this finding.
Residential Care Safety 419-470-0080 (5)(a) Evacuation drill occurs monthly under varying conditions, is retained 2 years and contains: (A) identify of person conducting drill (B) date & time (C) notification method (D) staff participating (E) # of children & staff evacuated (F) special conditions simulated (G) problems encountered (H) time to complete • Agency was missing an evacuation drill for September 2023. **Corrective Action**: Agency must ensure that evacuation drills are conducted monthly.	**Yes☐ No✓**	In the Correction Action Plan, administrative oversight was identified to ensure fire drills occur monthly. During site visit on 8.21.2024, all files reviewed showed monthly fire drills completed. No further follow up needed.

New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4) (d) Attributes of population served • Documentation of this training was found in all files reviewed. One file was found not having this training completed within the 30-day requirement. **Corrective Action**: Agency will ensure Attributes of population served training is provided and documented within 30 days of hire for new employees.	**Yes✓ No☐**	In the Correction Action Plan, administrative oversight was identified to ensure the required orientation occurs within 30 days of hire for staff. During site visit on 8.21.2024, one file was found not having this training completed within the 30-day requirement. ***Repeat Finding:*** ***Corrective Action:*** • **Agency will ensure Attributes of population served training is provided and documented within 30 days of hire for new employees.**
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4) (e) & (5)(a) to (c) Mandatory reporting that includes: (a) legal definition of child abuse in ORS 418.257 and 419B.005 (b) legal responsibility to immediately report (c) legal responsibility to report is personal to the employee • Documentation of this training was found in all files reviewed. One file reviewed was found not having this training completed within the 30-day requirement. **Corrective Action**: Agency will ensure Mandatory Reporting training is provided and documented within 30 days of hire for new employees.	**Yes✓ No☐**	In the Correction Action Plan, administrative oversight was identified to ensure the required training occurs within 30 days of hire for staff. During site visit on 8.21.2024, one file reviewed was found not having this training completed within the 30-day requirement. ***Repeat Finding:*** ***Corrective Action:*** • **Agency will ensure Mandatory Reporting training is provided and documented within 30 days of hire for new employees.**
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4) (g) Emergency procedures • Documentation of this training was found in all files reviewed. One file was found not having this training completed within the 30-day requirement. **Corrective Action**: Agency will ensure Emergency procedures training is provided	**Yes☐ No✓**	In the Correction Action Plan, administrative oversight was identified to ensure the required training occurs within 30 days of hire for staff. During site visit on 8.21.2024, all files reviewed showed the training requirements were within the 30 days. No further follow up needed.

and documented within 30 days of hire for new employees.		
New Employee Orientation Residential (Prior to working alone and within 30 days) 419-470-0120(1) (a)Discipline and behavior management including de-escalation, crisis prevention, positive behavior management, and disciplinary techniques that are non-punitive in nature • Documentation of this training was found in all files reviewed. One file was found not having this training completed within the 30-day requirement. (*Repeat Finding*) **Corrective Action**: Agency will ensure discipline and behavior management training is provided and documented within 30 days of hire for new employees.	**Yes☐ No✓**	In the Correction Action Plan, administrative oversight was identified to ensure the required training occurs within 30 days of hire for staff. During site visit on 8.21.2024, all files reviewed showed the training requirements were within the 30 days. No further follow up needed.
New Employee Orientation Residential (Prior to working alone and within 30 days) 419-470-0120(1) (b) CPR and First Aid sufficient to retain a current certification • Documentation of this training was found in all files reviewed. One file was found not having this training completed within the 30-day requirement. **Corrective Action**: Agency will complete CPR and First Aid staff training and document it within 30 days of hire for new employees	**Yes☐ No✓**	In the Correction Action Plan, administrative oversight was identified to ensure the required training occurs within 30 days of hire for staff. During site visit on 8.21.2024, all files reviewed showed the training requirements were within the 30 days. No further follow up needed.
Crisis Intervention Training Standards and Certification 419-400-0160(4) (as applicable) (a)Complete a minimum of 12 hours of initial training in person from a certified instructor, including but not limited to a minimum of six hours of training focused on positive behavior support, nonviolent crisis intervention and other methods of nonphysical intervention to support children in care during a crisis	**Yes☐ No✓**	In the Correction Action Plan, administrative oversight was identified to ensure the required training occurs within 30 days of hire for staff. During site visit on 8.21.2024, all files reviewed showed the training requirements were within the 30 days. No further follow up needed.

• Documentation of this training was found in all files reviewed. One file was found not having this training completed within the 30-day requirement. **Corrective Action**: Agency will ensure the 12 hours of initial training are completed and documented within 30 days of hire for new employees		
Records Relating to Restraint & Involuntary Seclusion 419-400-0180(13)(e) Each child caring agency shall provide notice regarding how to access the quarterly reports to the parents or guardians of children in care in the program. The child caring agency shall provide the notice upon the child in care's admission and at least two times each year thereafter. • The agency does not have a process for providing access to quarterly reports for parents or guardians of children. **Corrective Action**: Agency will create a process for providing access to quarterly reports for parents and guardians of children in care in the program. The child caring agency shall provide notice to guardians of how to access reports upon the child in care's admission and at least two times each year thereafter.	**Yes☐ No✓**	Due to SB710, restraint reports are required. Albertina Kerr revised initial admission paperwork to include verification that parents received information about how to access the program's restraint reports. Licensing rules require this information to be provided at intake and two times thereafter within the year. Agency submitted documents on 8.22.2024 regarding how parents/guardians can access the quarterly reports relating to restraint & involuntary seclusion. The program is in compliance.
Records Relating to Restraint & Involuntary Seclusion 419-400-0190(1) Information provided to children in care relating to Restraint & Involuntary Seclusion • The agency is creating a process for providing information to children in care relating to suspected inappropriate use of restraint & seclusion.	**Yes☐ No✓**	Agency created a process for providing information to children in care relating to suspected inappropriate use of restraint & seclusion. Agency is in compliance with rule relating to SB 710.

Corrective Action: Agency will create and implement a process for providing information to children in care relating to suspected inappropriate use of restraint & seclusion. Licensing provided an example for the agency.		

New Findings from Site Visit	Comments
419-400-0100 **Licensing Umbrella Rules: Resources Required** (2) A child-caring agency must employ or contract for a sufficient number of competent and qualified employees to perform the functions regulated by these rules and to provide adequate care, safety, protection, and supervision of the children in care and families the child-caring agency serves.	Licensing Manager and Licensing Coordinator reviewed the programs Room Search Logs. Two out of six room searches were not completed according to the log. The program has retrained their staff on the proper methods of searching rooms and are making efforts toward making sure searches are happening more reliably, even though they have missed a couple searches. ***Corrective Action:*** Program will ensure youth room checks are completed per program policy and procedures. During the unannounced review, the program was encouraged to review policy and procedures regarding Room Searches and to evaluate if their needs to be changes made to the current policy.

Interview Summary
Two youths were interviewed at the unannounced site inspection. • Both youths stated things were going well at the programs. • When asked what the youth appreciated most about the program the youth stated: “Appreciate the staff.” “Good relationships.” “I get to decorate my room.” I get to have a clock in my room.” “Staff are nice.” “Everyone is pretty cool.” • One youth talked about being involved in skills groups, education group, and other kinds of groups. • When asked about recreation or fun things to do in the program, youths stated, “going to the gym, making bracelets, sand art, drawing, painting, crochet, coloring, making crafts, listening to music, and going outside.” One youth stated that they would like to have more activities to do as they feel there is more down time than they would like. • Both youths confirmed they receive enough food to eat, snacks are provided and as well as fruit. • Both youths stated they can make phone calls and have privacy when making phone calls. • Both youths stated they are provided sufficient hygiene products by the program. • All the youth stated they had someone at the program they could talk to if they felt uncomfortable or needed anything. • When asked if they could change anything about the program, one youth stated they wished they could have more visits. The other youth interviewed stated that they would want the food to be better overall. • When asked about feeling safe in the program, both youths feel safe at the program. One youth felt that not all staff are great at dealing with youth behaviors; but still feels safe in the program.

Observations
Staff and youth were observed at the program during the inspection. The youth that were at the program appeared to be at ease and comfortable in the environment. All areas of the program (inside and outside) where youth had access were observed to be well kept, clean and mostly in good repair. It was observed that the vinyl is cracked around the drain in the kitchen. Also, three rooms in the Northwest Wing where youth reside were observed to be cluttered. The program does have a weekly structured room cleaning time. Medication was observed to be in locked medication carts in locked rooms which were inaccessible to the youth. The agency now has six beds for DHS youth that integrate with the other youth in the Subacute Program. These youth are housed on the Northwest Unit. The licensing supervisor & licensing coordinator were able to look at the Room Check Logs. It was observed that checks are being completed; but that a few checks were not completed during shifts. The program is retraining their staff on proper methods of searching youth’s rooms and they are making efforts towards making sure they happen more reliably.

Corrective Actions and Timeframes:
Please submit the following to verify compliance.
Within 45 days of receipt of this report **Albertina Kerr** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to **Jorge Pelinski at Jorge.L.Pelinski@odhsoha.oregon.gov.**

Licensing Coordinator's Signature: Jorge Pelinski Date: 9-9-2024

Manager Review: _____ Date: 9-6-2024